

103	Phetsamone Solis vs. Integral Senior Living LLC 2018-01015988	Final Accounting The settlement administrator, Atticus Administration, LLC, has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. (ROA #271.) As Plaintiffs have shown that the administrator’s work is complete, the Court’s file may now be closed. Plaintiffs are ordered to give notice of this ruling to Defendants.
104	Griffin vs. Lendify Associates LLC 2025-01517244	Demurrer to Complaint Defendant Lendify Associates LLC’s demurrer to Plaintiff Heather Griffin’s complaint is OVERRULED. (Code Civ. Proc. [CCP], § 430.10, subd. (e).) Defendant shall file and serve an answer, if any, within 14 days of notice of this ruling. Defendant’s and Plaintiff’s requests for judicial notice (RJN) are GRANTED. (Evid. Code, § 452, subd. (d).) Defendant’s sole argument in support of the demurrer is that Plaintiff’s complaint is barred by res judicata because the complaint is identical to one dismissed by the United States District Court for the Central District of California in <i>Griffin v. Lendify Associates LLC</i>, Case No. 8:25-cv-01282-JWH-ADS. As Defendant notes, the district court’s dismissal was based on Plaintiff’s failure to comply with the district court’s Order to Show Cause re Dismissal for Lack of Prosecution. (See ROA #18 [RJN ISO Dem.] at Exh. 3.) The district court’s judgment dismissing the case cited Federal Rule of Civil Procedure (FRCP), rule 41(b) in support of its dismissal but did not specify whether the dismissal was with or without prejudice. (<i>Id.</i> at Exh. 4.) FRCP, rule 41(b) states: (b) Involuntary Dismissal; Effect. If the plaintiff fails to prosecute or to comply with these rules or a court order, a defendant may move to dismiss the action or any claim against it. Unless the dismissal order states otherwise, a dismissal under this subdivision (b) and any dismissal not under this rule—except one for lack of jurisdiction, improper venue, or failure to join a party under Rule 19—operates as an adjudication on the merits. As the language of FRCP, rule 41(b) itself suggests and as the Ninth Circuit has recognized, the district court has discretion to dismiss an action with or without prejudice under FRCP, rule 41(b) and under its inherent powers. (See <i>Al-Torki v. Kaempfen</i> (9th Cir. 1996) 78 F.3d 1381, 1385.)